

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 26-02

NANCY PRIOR

COMPLAINANT,

v.

AMOOV GROUP, FREIGHTLEAD LLC, AIR 7 SEAS
TRANSPORT LOGISTICS, INC.

RESPONDENT.

**RESPONDENT FREIGHTLEAD’S REPLY TO COMPLAINANT’S OPPOSITION TO
RESPONDENT’S MOTION TO DISMISS**

Respondent Freightlead LLC (“Respondent” or “Freightlead”), pursuant to 46 CFR §502.70 (c), submits this Reply to Complainant’s Opposition (“Opposition”) to Respondent’s Motion to Dismiss (“MTD”) Complainant’s Second Amended Complaint. Because Complainant’s Opposition introduces new facts, a declaration, and exhibit, not included in the Second Amended Complaint, Respondent’s MTD is now supported with additional grounds to support dismissal.

Freightlead’s Reply

Complainant’s Opposition Raises New Arguments and Allegations Not Included In Its Second Amended Complaint.

Complainant’s Second Amended Complaint states that, “[t]his operative pleading completely restates, clarifies, and supersedes all prior complaints in this proceeding.” Complainant’s Opposition at 1. Respondent stated in its MTD that Complainant alleged in its

Second Amended Complaint, that it entered into a contract with AMOOV Group for door-to-door carriage of Complainant's household goods from Luxembourg to Fort Lauderdale, Florida, and paid AMOOV Group in full for that service." Second Amended Complaint at 3. Complainant further alleged that, "Complainant contracted solely with AMOOV Group and had no contractual relationship with FreightLead or Air 7 Seas." Id. at 3. (Emphasis added).

Complainant's Opposition raises new facts and allegations not contained in its Second Amended Complaint. In the opening to its Opposition, Complainant alleges that "the factual record demonstrates that FreightLead maintained a willful, non-transparent hold on the cargo for a period of 40 days, following several months of failure to notify the Complainant of the cargo's arrival, in violation of 46 U.S.C. § 41102(c)." Complainant's Opposition at 1. Respondent Freightlead submits that there is no reference in the Second Amended Complaint that Freightlead engaged in any "willful, non-transparent hold on the cargo for a period of 40 days" As set forth in Respondent's MTD, the primary issue with the Complaint in this proceeding is that it does not in any way allege facts to support a violation of 41104 (c) as against Freightlead.

Generally, a plaintiff cannot cure a deficient complaint by raising new factual allegations or new legal theories for the first time in an opposition brief to a motion to dismiss. It appears that Complainant, in its Opposition, raises new facts and legal theories outside of the Complaint, instead of addressing the failure to state a claim under Federal Rules of Civil Procedure 12(b)(6). This was the case in *OL USA LLC vs. MAERSK A/S*, FMC Docket 24-11 (Served August 8, 2024), In that case, ALJ stated that:

In the MTD, Respondent predominantly raises discovery issues rather than presenting arguments for failure to state a claim under Federal Rules of Civil Procedure 12(b)(6).¹ MTD at 2-9. A motion to dismiss under FRCP 12(b)(6), which the MTD appears to be, must show that a complaint does not "contain sufficient factual matter, accepted as true, to 'state a claim to relief that is plausible on its

face.”” *Mitsui O.S.K. Lines, Ltd. v Global Link Logistics, Inc.*, 2011 WL 71440008 at *12 (FMC 2011) (quoting in part, *Bell Atlantic Corp. v. Twombly*, 550 U.S. 544, 570 (2007)). Thus, the motion to dismiss an opposition to the motion to dismiss should address the sufficiency of the allegations in the complaint, not the status of discovery. The reply to the opposition, in turn, should address the arguments raised in the opposition that assert that Complainant has sufficiently pled the allegations in the complaint.

Id. at 3.

Here, instead of addressing the issues raised by Respondent’s MTD challenging the sufficiency of Complainant’s allegations in its Complaint, Complainant raises new facts and legal theories not referenced in the Second Amended Complaint. The following are Complainant’s introduction of new facts, declaration, and Exhibit not included or attached to the Second Amended Complaint.

1. “FreightLead’s sustained refusal to disclose the warehouse location hindered the movement of cargo to facilitate a third-party financial dispute, a practice the Commission has found to be an unreasonable practice. Opp. at 1, 2. Complainant provided nothing more to these new allegations.
2. “Respondent FreightLead’s characterization of itself as a passive delivery agent is contradicted by the operational facts and the specific conduct of its agents, which establish a prolonged period of unauthorized withholding” Opp. at 2. Complainant for the first time alleges the “conduct of its agents,” without identifying the “agents.”
3. **Non-Disclosure of Essential Shipping Information (Nov 13):** On November 13, 2025, Complainant’s representative visited FreightLead’s Parsippany, NJ facility to tender a formal request for the Bill of Lading (BOL) and the physical location of the cargo. A FreightLead representative, identified as Aras Kaya, acknowledged access to the shipment’s internal records but explicitly refused to release the BOL or disclose the warehouse location. (See Exhibit 1, Declaration of David Thomas Driscoll). Opp. at 2. These new allegations, and the Declaration of Mr. Driscoll were not attached to the Second Amended Complaint.
4. **Subordination of Access to a Third-Party Intermediary:** In lieu of fulfilling its regulatory obligations, Mr. Kaya provided Complainant’s representative with a handwritten note directing all release inquiries to a specific individual, "Nelson," in the "Dispatch" department of Respondent Air 7 Seas. (See **Exhibit**

- 1-A).** By subordinating Complainant's access to her property to the discretion of a third-party intermediary, FreightLead acted as the operational gatekeeper and "but-for" cause of the continued withholding. Opp. at 2.
5. **Prolonged Period of Negligence and Active Withholding:** Respondent FreightLead's failure to observe just and reasonable practices extends from the cargo's arrival in Miami in August 2025 through the date of disclosure in December. Despite the cargo being under their purview for months without notice to the Complainant, FreightLead transitioned from passive negligence (August through November) to the active withholding of information for a period of 40 consecutive days (November 13 to December 23). This continuous period of non-cooperation was terminated only on December 23, 2025, less than 24 hours after the filing of the Formal Complaint." Opp. at 3
 6. **Causation and Aggregate Damages:** The immediate disclosure of cargo information post-filing confirms that FreightLead maintained the capacity to facilitate delivery at any point since the cargo's arrival. FreightLead's sustained failure to notify and subsequent refusal to cooperate were the proximate causes of Complainant's total economic damage of \$21,419.64. Opp. at 3. These are new factual allegations against Freightlead not referenced in the Second Amended Complaint."
 7. Respondent FreightLead's claim that it was not involved in this transaction is contradicted by the physical evidence. Complainant has provided a redacted Bill of Lading (Exhibit 2) which prominently features the FreightLead brand and logo. This document was issued to the Complainant by Respondent AMOOV as the official record of the shipment. The existence of FreightLead-branded documentation at the point of origin confirms that FreightLead was a designated participant in the logistics chain from the outset. Furthermore, the fact that FreightLead personnel in New Jersey possessed the internal tracking data and directed the Complainant's representative to "Dispatch" proves that FreightLead was the active operational point of contact for this shipment. Regardless of their internal business relationships, FreightLead's specific actions in withholding information were the direct cause of the Complainant's damages.

It appears from the above that Complainant's Opposition is an attempt to re-draft its Second Amended Complaint and dress it up with new facts, a declaration, and exhibit-all not included in the Second Amended Complaint. Complainant did not address how it adequately alleged sufficient factual matter to support a violation of 4114 (c).

As stated above that the general rule is that MTD tests the legal sufficiency of the existing complaint, briefs and opposition memoranda are not pleadings. Here, Complainant cannot unilaterally amend its Complaint through new arguments or new facts, declarations and exhibit. Complainant's Opposition does not at all address Respondent's challenge to the sufficiency of the factual allegations of the Complaint.

Conclusion:

Freightlead maintains that Second Amended Complaint and the subsequent Opposition to MTD do not support a violation of 41104 (c) as against Respondent Freightlead. In addition, because Complainant's Opposition introduces new facts, declaration, and an exhibit not included in the Second Amended Complaint, Respondent's MTD is now supported with additional grounds to support dismissal.

For the foregoing reasons, the Respondent Freightlead respectfully requests that Complainant's Second Amended Complaint in this proceeding be dismissed with prejudice.

Respectfully Submitted



Respectfully submitted,
Henry P. Gonzalez, LL.M.
Gonzalez del Valle Law
1250 Connecticut Ave., N.W., Suite 700
Washington, D.C. 20036
Tel: 202-973-2980
gonzalez@gdvlegal.com
Attorneys for Respondent Freightlead LLC

Dated: August 17, 2026

CERTIFICATE OF SERVICE

I certify that on August 17, 2026, the foregoing Respondent Freightlead's Reply to Complainant's Opposition To Respondent's Motion To Dismiss was served via electronic mail on:

Complainant Nancy Prior: nancyrprior@gmail.com

Counsel for Respondent Air 7 Seas Logistics: bec@cargolaw.com

Respondent Amoov Group: connect@amoovgroup.com

judges@fmc.gov

/s/ Henry P. Gonzalez

Dated: August 17, 2026